

CHAPTER FOUR

Landscape

In October 2018, a candidate for a seat on the Seattle City Council published and circulated a white paper online titled “The Politics of Ruinous Compassion.”¹ Purporting to diagnose the city’s homelessness crisis for what it was, the essay spread like wildfire, jumping from internet backrooms to the hallways of the public sector to the pages of local media. “Seattle is a city under siege,” it began. The crisis wasn’t a structural failing; it was an ideological success. Homelessness was collateral damage. In particular, rising rates of homelessness in recent years were a result of “a deeper, ideological war that’s currently being won by a loose alliance of four major power centers: the socialist intellectuals, the compassion brigades, the homeless-industrial complex, and the addiction evangelists.”² The candidate in question didn’t win the election, but his ideas persist.

Disdain for compassionate responses isn’t reserved solely for local politics. As described earlier, in 2019, the Trump administration’s Council of Economic Advisors published a report titled *The State of Homelessness in America*. The stated objective of

the document is remarkably similar to the purpose of our book: “This report (i) describes how homelessness varies across States and communities in the United States; (ii) analyzes the major factors that drive this variation; (iii) discusses the shortcomings of previous Federal policies to reduce homeless populations; and (iv) describes how the Trump Administration is improving Federal efforts to reduce homelessness.”³

The report highlights four factors that explain the variation in rates of homelessness across the country, with the following pressures driving up regional rates: (i) high housing costs (attributable by the authors to overregulation of housing markets), (ii) conditions more amenable to sleeping outside, (iii) significant shelter capacity, and (iv) the overrepresentation of people in a given community who are at risk of homelessness. “Severe mental illness, substance abuse problems, histories of incarceration, low incomes, and weak social connections each increase an individual’s risk of homelessness,” write the authors, “and higher prevalence in the population of these factors may increase total homelessness.”⁴

While such an argument seems plausible, the evidence doesn’t support it. In the prior chapter, we analyzed this explanation—prevalence of individual risk factors—and found little evidence that it explains regional variation in rates of homelessness. Higher poverty rates don’t imply higher rates of homelessness; substance abuse rates can’t explain differences in the severity of states’ homelessness. There is something else going on. In the next chapter, we test housing market explanations for homelessness and (like the administration) find that high housing costs help to explain differences in regional rates of homelessness. In this chapter, we investigate the cultural and environmental factors frequently cited as reasons for high regional rates of

homelessness: local politics, the generosity of public assistance, and local weather conditions. Two of the White House's causal factors fall under this explanatory category. Namely, they argue that mild weather may encourage unsheltered homelessness—under the logic that it is easier to live without permanent shelter when weather conditions are more favorable—and that greater shelter capacity *pulls* people out of suboptimal living conditions and into shelter. Without homelessness service provision, the argument goes, people might remain precariously housed in other settings as opposed to becoming homeless (in the eyes of HUD) by entering the shelter system.

What follows from this mode of reasoning (and from local critics like that of the city council candidate cited above) is a persistent argument that certain cities have created a *culture* that encourages homelessness to thrive and persist—as a practice and a choice. The general contours of the argument suggest that temperate weather, generous social services (i.e., “welfare magnets”), and permissive local policies and politics combine to create an environment in which homelessness is left unchecked—if not, as the phrase “ruinous compassion” might suggest, promoted. Here, we test the relationships between measures of each of these cultural factors and the rate of homelessness in each city and county in our sample. We find little evidence for a correlational (much less causal) relationship.

WEATHER

One of the most common explanations that I (Gregg) hear when I discuss homelessness with people in Seattle is the weather. Homelessness is salient on the West Coast because we have relatively temperate climates that are more conducive to living

without permanent shelter, the argument goes. When I push my conversation partners on Seattle’s 39°F average low temperature in January and persistent winter rainfall, they usually concede that weather might not be the draw for homelessness in Seattle, but that it surely is in San Francisco, Los Angeles, and San Diego. Fair enough, I argue, but what about Texas and Florida, which have relatively low rates of homelessness but winter weather far more conducive to sleeping on the street?

The climatic argument for homelessness variation is easy to wrap one’s head around—it tells a tidy story—but that doesn’t mean it’s right. The 2019 White House report on homelessness, at best, misleads. The authors state that “more tolerable conditions for sleeping on the streets (outside of shelter or housing) increases homelessness”—a causal claim.⁵ And yet even the following sentences alter the assertion considerably: “We show that warmer places are more likely to have higher rates of unsheltered homelessness, but rates are nonetheless low in some warm places. For example, Florida and Arizona have unsheltered homeless populations lower than what would be expected given the temperatures, home prices, and poverty rates in their communities.” Despite the initial sentence that draws a blanket relationship between temperature and homelessness, the subsequent text suggests a narrower link between *unsheltered* homelessness and weather—a relationship well understood in existing literature.⁶

Critical to recall in discussions of weather and homelessness is the Housing and Urban Development definition of the latter. Total homelessness in a given Continuum of Care (CoC) is the sum of the unsheltered and sheltered homeless populations (the second of which constitutes people living in emergency shelters, transitional housing, or Safe Haven domestic violence

shelters—and does not include people temporarily doubled up with friends or family). Given this definition, if a person moves from outdoors into a shelter, their experience of homelessness is renamed in the eyes of the state; but it is not erased. In other words, the move does not change the total population of people experiencing homelessness: It recharacterizes it.

This distinction is essential when considering regional variation in rates of homelessness. If your goal as a researcher, policymaker, or concerned resident is to understand why homelessness is more severe in some areas than in others, we argue you must understand the entirety of the issue—and the issue is larger than unsheltered homelessness. This is not meant to minimize unsheltered homelessness; people sleeping outside are at particular risk of the physical, mental, and emotional health effects of prolonged homelessness and represent the most visible manifestation of housing instability. But by definition, everyone experiencing homelessness lacks permanent housing. That Midwestern and East Coast cities tend to have far greater shelter capacity than those on the West Coast helps to explain the relative dearth of unsheltered homelessness in places like Minneapolis, Boston, and New York. While weather may influence the level of unsheltered homelessness in a city, it also affects the *response* to homelessness in those communities. This fact helps explain why cold weather cities in the Midwest and the Northeast have robust shelter systems. Rather than cause unsheltered homelessness, weather may merely drive variation in local policy responses.

Using the data in our sample, we analyze the relationship between weather and homelessness. As is the convention in the vast majority of homelessness research, we use temperature and precipitation in January to assess the relationship in question.

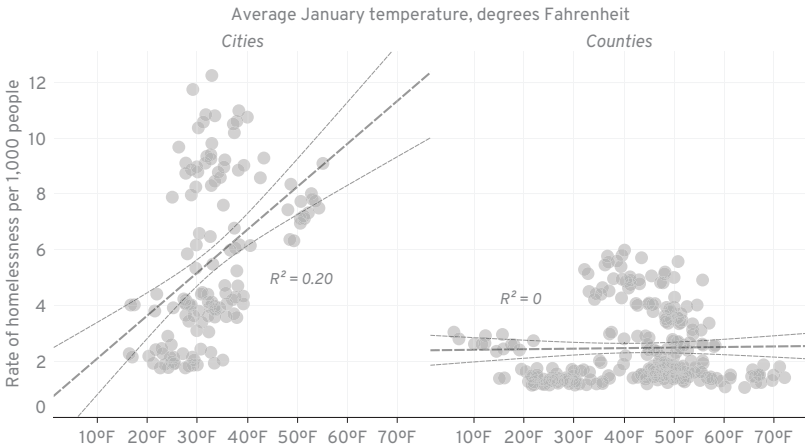


Figure 13. January average temperature versus PIT count (per capita). Dashed lines indicate a linear regression of per capita PIT counts onto average January temperatures between 2007 and 2019 for a sample of U.S. regions. Data source: HUD / NOAA

(CoCs conduct their annual point-in-time homelessness census at the end of January.) When broken out by city and county CoCs, we see a strong positive relationship between temperature and homelessness in cities and no relationship in the county CoCs (Figure 13). When we index rates of homelessness to directly compare CoCs on the same figure, we find no relationship between temperature and homelessness (Figure 14).⁷ Even in our city sample, the relationship is likely an artifact driven by the coincidence that many of the city CoCs (with low rates of homelessness) are located in cold climates—including Chicago, Detroit, Indianapolis, Philadelphia, and Baltimore—and “pull down” the curve. For example, thirteen of the nineteen county CoCs in our sample have average January temperatures above 40°F. Only two city CoCs pass this threshold. When we attempt to capture ample variation in temperature and expand

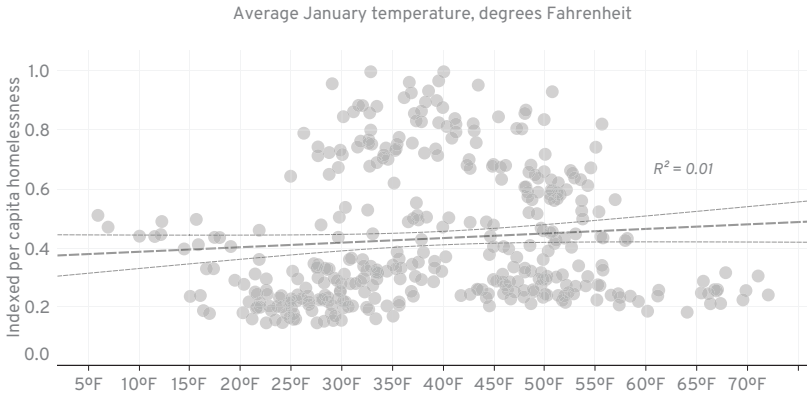


Figure 14. January average temperature versus indexed homelessness. Dashed lines indicate a linear regression of indexed rates of homelessness onto average January temperatures between 2007 and 2019 for a sample of U.S. regions. Data source: HUD / NOAA

our analysis to county CoCs (or index the sample and directly compare all regions), the temperature-homelessness relationship disappears. The dubious link between weather and *total* homeless counts is also noted in existing literature.⁸

Still, a closer look at this relationship does yield an important observation: When we break out homelessness by sheltered and unsheltered status, we see a positive relationship between January weather and unsheltered counts. The effect is particularly strong in cities (partly due to the sampling issues noted above), but it persists in counties. At face value, these data illustrate an association between temperature and unsheltered homelessness. But a central question remains as to whether average temperature in its own right uniquely and directly drives unsheltered homelessness—or whether the strong correlation in cities represents the thumbprint of some unobserved process (including, for example, the shelter-supply-response scenario outlined

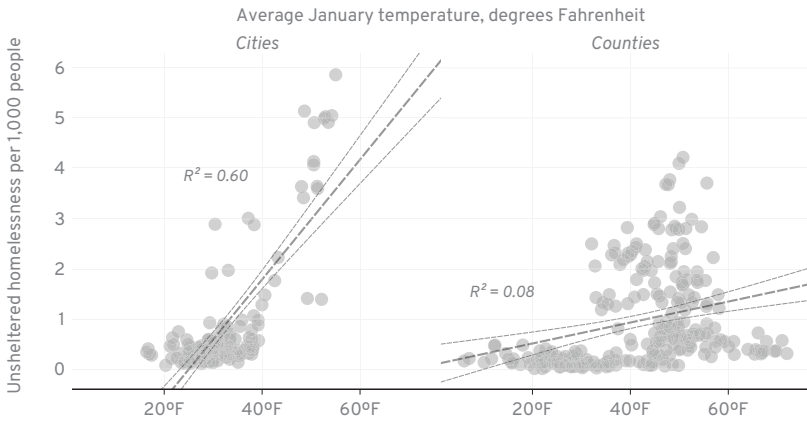


Figure 15. January average temperature versus unsheltered count (per capita). Dashed lines indicate a linear regression of per capita unsheltered PIT counts onto average January temperatures between 2007 and 2019 for a sample of U.S. regions. Data source: HUD / NOAA

above). One data point in favor of temperature driving shelter *capacity* responses to homelessness as opposed to driving unsheltered homelessness in its own right comes by way of Figure 15, which illustrates the relationship between average January temperatures and the proportion of the population experiencing homelessness in a given region that is sheltered. As might be expected if shelter capacity responds to harsh winters in places like the Midwest and Northeast, cities and counties with lower January temperatures report much higher proportions of sheltered homelessness. All told, we might say that colder weather is indeed associated with lower rates of unsheltered homelessness; but broadly speaking, temperature fails to explain variation in overall rates of homelessness throughout our sample.⁹

Even the Council of Economic Advisors softens its stance in the report's slightly more nuanced discussion. While the authors

identify a strong temperature–unsheltered homelessness relationship in cold places, the relationship appears to be less convincing in warmer locales:

Rates of unsheltered homelessness are uniformly low in cold places. In other words, the difficulty of sleeping on the streets is so high during the winter in places like Minneapolis that unsheltered homelessness is extremely rare. However, there is wide variation in rates of unsheltered homelessness in warmer places. For example, Orlando, Las Vegas, and San Francisco all have January temperatures of between 50°F and 60° degrees Fahrenheit. But their rates of unsheltered homelessness are 2, 19, and 60 per 10,000 people respectively. . . . It is clear that warm climates enable, but do not guarantee, high rates of unsheltered homelessness. *Thus, factors beyond climate help determine rates of unsheltered homelessness in warm places.*¹⁰

Far from arguing that weather can reliably explain variation in overall rates of homelessness, the report's authors note it is inadequate to even fully capture differences in unsheltered homelessness. Mother Nature—a convenient scapegoat—is not to blame.

LOCAL HOMELESSNESS RESPONSE SYSTEMS

Broadly speaking, we can split the homelessness response systems into two broad categories: those with robust shelter capacity and those with more limited shelter systems. As cited above, for example, the Midwest and East Coast includes many cities and communities that have constructed substantial shelter systems to accommodate the people in their communities who experience homelessness. Accordingly, unsheltered homelessness in many of these cities is relatively rare. The level of unsheltered homelessness in San Francisco is more than ten times that

of New York and Boston, but both of the latter cities have higher overall levels of homelessness than the former. This stark difference highlights a profound distinction between homelessness responses. The East Coast model emphasizes significant shelter capacity and, in many cases, protects shelter access as a legal right.¹¹ By and large, West Coast cities (and some in Florida and Texas) have adopted a different approach. Shelter capacity in West Coast cities like Los Angeles, San Francisco, and Seattle is far more limited, and as a result, unsheltered homelessness is far more prevalent—even when comparing regions with similar rates of per capita homelessness.

We saw in the previous section how environmental factors like the weather may naturally guide CoCs to respond differentially to homelessness. But shelter systems serve two purposes. First, and perhaps most obviously, they provide beds and a roof to those who need them. In many cases, the shelter system offers a life-saving intervention, especially in regions with very inhospitable climates. But as critical research notes, the shelter system also serves a second purpose: concealment.¹² Homeless shelters don't end homelessness, they recharacterize it. And in doing so, they help jurisdictions *hide* people experiencing homelessness from the general public.

These purposes serve dual ends: to respond to the crisis at hand and to minimize public perception of the problem. Neither purpose serves to prevent the crisis in the first place. Nor do they cause the crisis. And yet, another argument concerning the relationship between shelter responses and homelessness—offered by many, including the Trump White House—is the notion that building additional shelter capacity encourages people to leave other suboptimal housing situations in favor of a homeless shelter; by extension, increasing rates of homelessness in a given region.

Cragg and O’Flaherty studied this phenomenon in New York City and found a modest relationship at best. The researchers tested whether rising rates of subsidized housing placements from family shelters drove entries into shelter (as families may have come to see shelters as gateways to securing permanent, subsidized housing). It wasn’t the case. The researchers found that “it takes placing at least seven families into subsidized housing to draw one family into the shelter system.”¹³ In other words, “Better prospects of subsidized housing increase flows into the shelter system, but this effect is not nearly large enough to offset the first order effect—taking families out of the shelters reduces the number of families in them.”¹⁴ Subsequent research suggested that placements into subsidized housing “do not seem to lure large numbers of families into the shelter system.”¹⁵

This “luring” language implies a magnet effect, whereby unstably or precariously housed people—who may not necessarily be experiencing homelessness—opt to sleep in emergency shelters for the potential service or subsidy provision on the other side. As the researchers above note, this particular magnet effect doesn’t appear to hold up to scrutiny. Aside from playing to a brand of political rhetoric that alleges system-gaming on behalf of the precariously housed—the same rhetorical brand that gave us the notion of the “welfare queen”—the argument presumes some people voluntarily give up their housing in favor of the shared bathrooms, lack of privacy and storage, and often elevated noise levels that characterize many emergency shelters in the country; all for the chance that entering a shelter constitutes a step toward permanent housing support. Given crisis-response resource scarcity, such moves directly from shelter to permanent housing (subsidized or unsubsidized) are all too rare. In King County (Seattle), for example, the Department of Community and Human Services

reports that only 14 percent of households exiting emergency shelters in 2019 left for some form of permanent housing (of which only a subset is subsidized).¹⁶

GENEROUS SOCIAL SERVICES

According to the United Nations, water scarcity may be the most visible and consequential effect of climate change.¹⁷ As water sources dry up, millions of people who rely on that water for their existence may be forced to move. Mass migrations, and the associated social upheaval, are frightening prospects, and new settlements will be disruptive events for all those who are affected. This mass movement of people is likely to occur in the United States. One recent study estimated that a changing climate will cause 8 and 4.5 percent population reductions over the next forty-five years in the U.S. South and Midwest, respectively, as people move to more accommodating locations in the Northeast and West.¹⁸ Imagine, during this coming period, if a policy analyst were to observe any potential or subsequent unrest or conflict in the latter regions and argue that the cause or source of these social problems was, say, the presence of fresh water as opposed to the depletion of aquifers elsewhere. *If it wasn't for this water source, we wouldn't have these problems!* The solution to a given region's instability—argues the analyst—is to restrict access to the water. Certainly, though, a more credible policy response would be to make water more available, rather than less so.

A form of this story already plays out in cities throughout the United States. Public and charitable supports—from employment centers to food banks and emergency shelters—are more frequently provided in cities, for example, than in suburban settings. Accordingly, people seeking these services are more

likely to travel to cities, sometimes permanently. And some of these people don't have permanent housing. Certainly, existing research documents evidence of migration from suburban to urban locations among people experiencing homelessness.¹⁹ Other studies have shown that mobility may indeed be related to housing instability—and that places with greater in-migration may have higher rates of homelessness because of population stresses on the housing market.²⁰ Importantly, though, these studies examine overall migration, not simply migration of people with low incomes or those experiencing homelessness. People move all the time, and many move to cities.

However, as concerns arise about the number of people experiencing homelessness in a given city, block, or neighborhood, some skeptical observers blame the provision of services. *Were it not for these services—water in the desert—these people wouldn't end up here seeking them*, the logic goes. Since these benefits and services serve as a magnet for people experiencing homelessness, we ought to remove them (as opposed to expand or better distribute their provision). *In catering to homelessness, cities encourage it*, the skeptics argue.

The social service provision debate mirrors a more general conversation about the relationship between the social safety net and homelessness writ large. Broadly, one argument along these lines suggests that a generous social safety net encourages homelessness because it draws additional people into a given city or county in search of these benefits. In practice, empirical evidence suggests the opposite relationship. For example, access to cash assistance programs reduces rather than increases homelessness.²¹ Researchers have repeatedly noted that other supports and services designed to assist unhoused or precariously housed people fail to increase the reported rate of homelessness.²² One potential

exception to this finding comes from Igor Popov, who finds that investments in supports for families may increase the number of families subsequently counted in the homeless census—which suggests a latent demand for housing supports for precariously housed families.²³ The balance of the academic evidence suggests that public assistance benefits and services work to *limit* homelessness rather than accelerate the phenomenon.

In this section, we offer two analyses to test whether we see any evidence of additional “magnet” effects that may explain regional variation in rates of homelessness. The first of these assesses the generosity of public assistance benefits by state. The primary U.S. cash public assistance program is known as Temporary Assistance for Needy Families (TANF). TANF, the successor program to Aid for Families with Dependent Children (AFDC), was created in the mid-1990s as part of President Clinton’s overhaul of the country’s welfare system—and captures most colloquial uses of the term “welfare.” A key element of the TANF program is the flexibility provided to states to determine how to spend federal money (including the maximum level of cash benefits they provide). This policy feature helps explain why TANF payments vary so substantially from state to state.²⁴

Because this variation occurs at the state level, we ask whether state rates of per capita homelessness vary with the generosity of TANF benefits. In particular, because TANF benefits are only available to families, we test the relationship between benefit generosity and rates of family homelessness. We measure relative generosity by dividing a state’s maximum monthly cash benefit by its median rent for a two-bedroom apartment. This ratio allows us to adjust our analysis to accommodate the fact that the cost of living varies from state to state as well. In Figure 16 below, note that there is no relationship between the relative

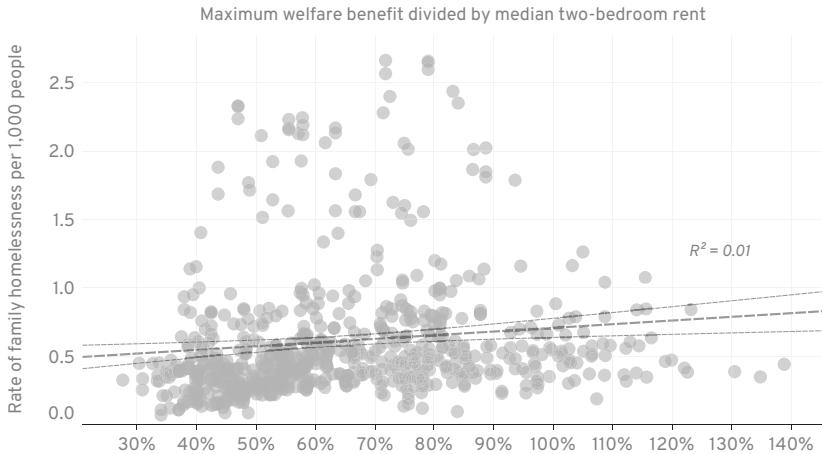


Figure 16. Benefit/rent ratio versus family PIT count (per capita). Dashed lines indicate a linear regression of family per capita PIT counts onto benefit/rent ratios in U.S. states between 2007 and 2019. Data source: HUD / Urban Institute

generosity of welfare benefits and family homelessness, as indicated by the flat, best-fit line. Indeed, our measure of the proportion of explained variation, R^2 , is nearly zero.²⁵ If generous cash assistance drew people experiencing homelessness into a given state, we would expect to see higher per capita rates of homelessness in these places. We don't.

Because TANF does not cover all types of households (single adults are not eligible), we also ask whether certain regions are a disproportionate draw for people living in poverty as a proportion of the total share of in-migration—and whether this share of low-income in-migration varies with rates of homelessness. Social services vary by location, so people may seek to optimize public benefits by relocating, and this movement may be more prevalent for those at higher risk of homelessness. That's the theory, anyway: By providing shelter, services, and financial

support, a region disproportionately attracts low-income households seeking these resources. We want to know whether that's the case. Existing research, based on state homelessness data from Iowa and Michigan, has illustrated some mobility of people experiencing homelessness from suburban to urban areas within the same metropolitan area.²⁶ Using a national data set, George Carter also found evidence of movement from suburban to urban locations.²⁷ But what about between cities? Existing research, on region-to-region migration tends to find no discernible geographic trends in the movement of homeless veterans²⁸ or people who are unsheltered.²⁹ In general, homeless households are *less* mobile than housed households.³⁰

Outside the academy, policy and media reports often highlight the notion that generous benefits attract people experiencing homelessness. A 2019 article in the *San Francisco Chronicle*, for example, offered answers to ninety-seven questions about homelessness.³¹ Two were directly related to the issue at hand: (1) "It seems that most, if not nearly all of the homeless people in the Bay Area come here from other states due to the region's progressive politics and generous benefits. Is that true?" and (2) "Do homeless people often relocate—move to a particular city because of better services, sense of community, weather, etc.?" The responses are consistent with the findings presented in this book: "Up to 80% of homeless people become homeless in the communities they live in. Some do travel to the Bay Area because, like others migrating here, they like the weather and the liberal environment. But virtually every major city in America also claims to be a magnet for homeless people. . . . In San Francisco, the city found in 2019 that 55% of homeless people had reported living in San Francisco for 10 or more years, and just 6% said they'd lived in San Francisco for less than one year."

None of this is to suggest that public opinion, regional generosity, and outright compassion don't vary from region to region. On an extremely low income, it's easier to find a meal or a place to sleep in some places than in others—for more reasons than cost alone. In an article in *The Oregonian*, Lewis Davis, homeless at the time, noted, "There's a saying on the street: You have to be stupid to starve in Portland. If you sit down on any sidewalk, eventually someone brings you a meal."³² But do people move to Portland for these meals? In the same article, the director of a local social services nonprofit argues that any city with high rates of in-migration "is going to attract all kinds of people—rich people, middle-class people, poor people. . . . I don't think I have ever met anyone who came here to be homeless. They came to find a job, and that didn't work out."

The homeless magnet story isn't reserved solely for expensive, coastal cities. A recent *Washington Post* piece explored its manifestation in Middletown, Ohio: "This small heartland city, situated almost halfway between Dayton and Cincinnati, has long had a heart. In good times and bad, it has offered a generous network of privately funded homeless shelters, drug rehabilitation facilities and soup kitchens, plus a library that promotes access for all. . . . Yet in recent months, officials and residents have begun to question whom those services are benefiting and how to shoulder the cost."³³

Even in small-town Ohio, claims of magnet effects are ubiquitous. And that's because the argument is convenient. While conducting research on homelessness in Minneapolis while in graduate school, I (Gregg) frequently heard that the prevalence of homelessness in the city was a result of people from Chicago coming to Minnesota for its generous services and benefits. When I moved to Seattle, I heard the same argument—It's

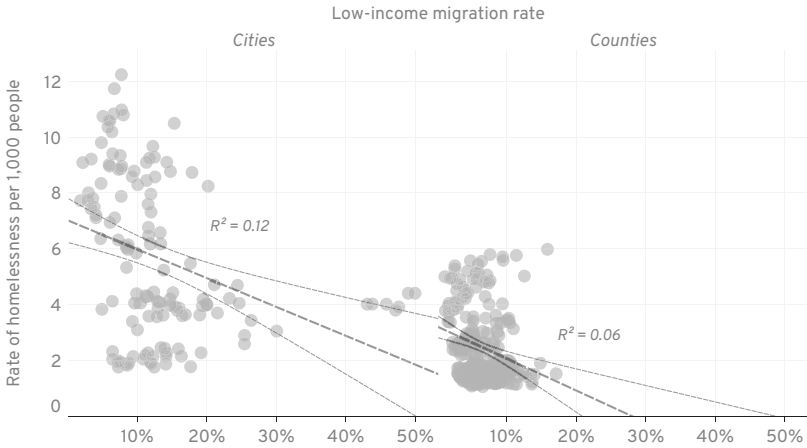


Figure 17. Low-income migration rate versus PIT count (per capita). Dashed lines indicate a linear regression of per capita PIT counts onto the low-income migration rate between 2007 and 2019 for a sample of U.S. regions. Data source: HUD / U.S. Census Bureau

people *from California* coming to Seattle for *our* benefits. As we noted above, the same argument crops up in California. And while it's impossible for every city to be a magnet, we know that some people who migrate to a given city may eventually lose their housing. The question is whether this happens disproportionately in some places more than others.

To test whether the mobility of vulnerable households helps to explain regional variation in rates of homelessness, we analyze mobility patterns across the income spectrum. In particular, Figure 17 illustrates that a region's proportion of in-migrants with incomes below the federal poverty line (out of all those moving to the region) is entirely unrelated, statistically speaking, to per capita rates of homelessness. Households with low incomes are moving to every city in our sample at similar rates. And while

it's true that some poor households move to regions with high rates of homelessness, these mobility patterns don't differ from other regions. For the "welfare magnet" argument to be credible, we'd need to see evidence of disproportionate movement of low-income households to certain regions. We don't. Regions with some of the highest rates of homelessness—Washington, D.C., San Francisco, and King County—all have poverty in-migration rates of less than 4 percent. In 2019, 25 percent of households moving to Detroit were below the federal poverty line; in Philadelphia, the figure was almost 12 percent. Undermining this potential explanation for regional variation, homelessness is lowest where low-income migration is the greatest.

Combined, these two analyses suggest the mobility of poor and precariously housed households do not explain regional variation in rates of homelessness.

LOCAL POLITICAL ENVIRONMENT

A final measure of local culture is the political environment of a given metropolitan area. As highlighted in the introduction to this book, in early 2019, the Trump administration was busy blaming local, Democratic politicians for the homelessness crisis in many of the nation's coastal cities.³⁴ To test the credibility of this claim, we identify the political party of the mayor of each of the cities in our sample.³⁵ Unsurprisingly, the mayors of large U.S. cities are predominantly members of the Democratic Party. Across the cities in our sample between 2007 and 2019, 85 percent of the time, the mayor was a Democrat. Republican mayors were in control 8 percent of the time. Independents were in office around 7 percent of the sample period. (San Diego and Miami lean Republican; New York and Las Vegas have had multiple

stretches of independent mayors). Democratic Party domination in most U.S. cities undermines the political argument in question: If allegedly permissive local policies implemented by Democrats are to blame for high rates of homelessness, why are rates of homelessness low in Democratic strongholds like Chicago, Detroit, and Cleveland? To subscribe to this theory, one would need to believe that the various shades of political blue explain the difference between widespread homelessness in one blue city—say, San Francisco—and relatively modest levels in another Democratic stronghold—Detroit.

To explore political explanations of homelessness further, then, we consider the common argument that certain cities have more permissive policies and ordinances regarding homelessness than others. New York City, for example, under the leadership of multiple mayors has actively pursued various degrees of police-driven responses to homelessness. The source of these policies can be traced to the 1980s, when, as in many cities around the nation, homelessness emerged as a major issue in New York City. The growing crisis prompted litigation (*Callaban v. Carey*) that ultimately forced the city to provide shelter for people experiencing homelessness—and New York became the first city with a right-to-shelter policy. In a history of homelessness in New York, Diane Jeantet summarized the response to homelessness of the three mayors who led the city during the 1980s and 1990s:

Sometimes their policies focused only on the more dire symptoms or most visible signs of homelessness. In a 1985 decision, the late Edward Koch ordered that police remove by force anyone sleeping in the streets on freezing nights. Similarly, during the Rudy Giuliani administration, police conducted searches in public places, arresting homeless New Yorkers and taking them to shelters. . . . But when it came to actually solving homelessness—moving people beyond shelters—

Koch, David Dinkins, and Giuliani all, to a certain extent, were guided by the belief that providing permanent housing to shelter residents would only serve to draw more people to the shelter system.³⁶

I (Gregg) first became interested in the issue of homelessness while working in New York as an investment banker in the mid-1990s. I lived on the Upper West Side of Manhattan and rode the subway each day down to the financial district in lower Manhattan where my office was located. At that time, Rudy Giuliani was mayor, and he was committed to “cleaning up” New York. On my morning subway rides, it wasn’t uncommon for me to see police officers pull a sleeping person off the train. These moments helped me to understand what “cleaning up” meant: It was a spatial solution to the problem. To ensure that Manhattan was safe and pleasant for tourists and the professionals who called it home, the city moved people experiencing homelessness elsewhere. This response didn’t end anyone’s experience with homelessness; it moved that experience to a different location. It’s possible that the people I saw dragged off trains were brought to emergency shelters. I don’t know. But I do know what strong enforcement of homelessness looks like in a big U.S. city.

From a political perspective, Giuliani’s strict enforcement was broadly praised. Popular narratives acknowledged that New York was more pleasant for tourists and residents, and Giuliani, therefore, deserved the credit. If we ignore the plights and common humanity of those without housing—and we hide them from view—it is far easier to arrive at this conclusion. Williams Cole, in a critique entitled “Against the Giuliani Legacy” wrote: “Reporting on our city [New York] makes it clear Rudy Giuliani has won a war of perception concerning how he has ‘cleaned up New York’ and changed its very fabric. One recent example from

the *Montreal Gazette* gushes, ‘It’s easy to see why Rudy Giuliani is the most popular mayor in New York history. Not only has Rudy cleaned the streets, he’s cleaned them up . . . taken the pimps and pushers off the streets and made them safe again . . . and chased the homeless and the squeegee kids away.’”³⁷

Spatial solutions to homelessness aren’t reserved solely for cities run by Rudy Giuliani. Aggressive enforcement of anti-homeless law persists in some of the most progressive cities in the nation. In their book *Banished*, Katherine Beckett and Steve Herbert chronicle the policing of homelessness in U.S. cities, notably Seattle, and observe that the evidence of banishment and exclusion from public spaces for people experiencing homelessness in Seattle contradicts the pervasive narrative of soft, permissive progressive governments as the driver of homelessness in coastal cities: “Seattle is one of the pioneering cities in the use of banishment as a social control strategy.”³⁸ The authors explore the effects of this form of social control:

We suggest that banishment as policy is futile and counterproductive. Although its use serves many short-term interests—including those of police, prosecutors, and private capital—it is nonetheless a policy failure. Its futility lies in the reality that many of those pressured to relocate are hard-pressed to do so. They are deeply attached to the places from which they are banned, for multiple reasons. . . . Banishment is also counterproductive because it imperils efforts by the socially marginal to integrate with mainstream society. . . . Furthermore, banishment does nothing to resolve any of the underlying conditions that generate social marginality, such as poor employment prospects, inadequate affordable housing, or the challenges of addiction. To the extent that cities increasingly rely on banishment as a putative solution to disorder, they will succeed only in displacing some individuals from one location to another and in rendering the lives of the disorderly more difficult.

Its increased use therefore deserves to be questioned and significantly curtailed.³⁹

Despite a lack of empirical evidence in support of the thesis that stronger policing of homelessness is the key to limiting its prevalence, these ideas persist at most levels of government and in a broad array of public forums. The recent White House report on homelessness draws a link between policing of local ordinances and high levels of unsheltered homelessness: "One potential factor is differences in city ordinances and policing practices, as these policies would directly affect the tolerability of living on the street and predict the aggregate number of unsheltered homeless people. Some States more than others engage in more stringent enforcement of quality of life issues like restrictions on the use of tents and encampments, loitering, and other related activities."⁴⁰ The authors provide scant evidentiary support for this assertion. If shelter capacity remains fixed, aggressive enforcement results in the shuffling of people experiencing homelessness around a city. (One only need look at the movement of homeless encampments from neighborhood to neighborhood following "street sweeps" to see the point here.) For the permissive policies argument to carry any water, we'd need to see evidence that stronger policing and more restrictive ordinances reduce rates of homelessness, whether intra- or inter-regionally. That evidence is nonexistent. The White House report cites Brendan O'Flaherty from his 1996 book, *Making Room: The Economics of Homelessness*, in support of more aggressive policing. But the broader context of O'Flaherty's comments suggests an entirely different interpretation: "Asking the police to be more aggressive—arresting panhandlers and people sleeping unobtrusively in public places—is futile. Police

officers—as a routine matter, which is what counts—won’t do it, and homeless people, since jail is warm, wouldn’t be deterred much if they did. I’m not arguing that the police should do nothing. Aggressive but nonpunitive referral is a positive strategy; it has a record of reducing street homelessness and the attendant costs it imposes on other people.”⁴¹

The point here is that so-called soft policing isn’t to blame for the homelessness crises in many cities. It’s possible that tougher responses from law enforcement may move visual evidence of homelessness to less apparent locations (i.e., out of Grand Central Station in New York City), but they won’t alter the total number of people experiencing homelessness.⁴²

While local policies and their enforcement play a major role in local responses to homelessness, one can’t discount the important role that courts have also played. As cited earlier, the *Callaban v. Carey* case forced New York City to create a shelter system for its growing homeless population—a model that has been replicated nationwide. More recently, a lawsuit originating in Boise, Idaho, raised the fundamental issue about who has a right to public spaces. In 2009, a group of people experiencing homelessness, represented by Idaho Legal Services, Latham & Watkins LLP, and the National Center on Homelessness and Poverty filed a complaint against the city of Boise after having been ticketed for violating a city ordinance that prohibited sleeping outside. The plaintiffs argued that because there was no place for them to sleep, the ordinance constituted cruel and unusual punishment. Ultimately, lawmakers changed the rule in question in such a manner that prohibited citations when the shelter system was at capacity. (And even following the change in the law, on appeal, the Ninth Circuit determined that the rule was unconstitutional.) Boise appealed to the Supreme Court,

but the high court refused to hear the case—thereby preserving its unconstitutionality throughout the Ninth Circuit, which includes states with high levels of unsheltered homelessness, including Washington, Oregon, and California. While the topic invites philosophical, moral, and legal questions concerning the relationship between residents and the state, for the time being, criminalizing homelessness is not the law of the land (in the Ninth Circuit). As such, cities must think beyond a narrow view of policies and ordinances designed to punish the unhoused: to broader considerations about the availability of housing for those who need it. After the Supreme Court refused to hear the case—preserving the rulings of the Ninth Circuit—Executive Director Maria Foscarinis at the National Homelessness Law Center remarked: “We’re thrilled that the Court has let the 9th Circuit decision stand so that homeless people are not punished for sleeping on the streets when they have no other option. But ultimately our goal is to end homelessness through housing—which is effective and saves taxpayer dollars—so that no one has to sleep on the streets in the first place. We hope the 9th Circuit decision will help communities find the political will to put that housing in place. Housing, not handcuffs, is what ends homelessness.”⁴³

SUMMARY

Cultural and environmental arguments about homelessness are compelling. Weather and politics are easy scapegoats when critics seek to assign blame for a homelessness crisis that exacts a significant toll on people and a broader community. But little evidence supports these lines of argument. Certainly, one can trace a connection between the insufficient federal housing

support for low-income households over the last four decades and increasing precarity among many low-income households.⁴⁴ Existing research also draws a strong link between federal disinvestment and overall levels of homelessness. But it fails to explain regional variation.

Locally, neither public-assistance generosity—which varies at the state level—nor the mobility of low-income households helps us understand why homeless rates differ across the country. Despite arguments to the contrary, existing literature fails to confirm the argument that more aggressive policing and enforcement solve homelessness. At best, criminalization of homelessness relocates a housing crisis from one region to another. (“Out of sight, out of mind” hardly constitutes a comprehensive response to housing instability.) And just as criminalization relocates homelessness, weather patterns recharacterize it. While weather and climate may help to explain why some cities have robust shelter systems, temperature fails to explain overall rates. Refuting these arguments forces regions to confront the reality that the crisis of homelessness is not entirely outside their control (as it would be if the weather were to blame). Homelessness is a direct result of how we construct and operate our cities.